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PART II—Section 2

प्राधिकार से प्रकाशित

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इस भाग में भिन्न पृष्ठ संख्या दी जाती है जिससे कि यह अलग संकलन के रूप में रखा जा सके।

Separate paging is given to this Part in order that it may be filed as a separate compilation.

LOK SABHA

The following Bills were introduced in Lok Sabha on the 9th August, 1971:—

BILL No. 112 OF 1971

A Bill further to amend the Constitution of India.

BE it enacted by Parliament in the Twenty-second year of the Republic of India as follows:—

1. This Act may be called the Constitution (Twenty-sixth Amendment) Act, 1971.

Short title.

2. Articles 291 and 362 of the Constitution shall be omitted.

Omission of articles 291 and 362.

3. After article 363 of the Constitution, the following article shall be inserted, namely:—

Insertion of new article 363A.

“363A. Notwithstanding anything in this Constitution or in any law for the time being in force—

Recognition granted to Rulers of Indian

(a) the Prince, Chief or other person who, at any time before the commencement of the Constitution (Twenty-sixth Amendment) Act, 1971, was recognised by the President as the Ruler of an Indian State or any person who, at any time before such commencement, was recognised by the President as the successor of such Ruler shall, on and from such commencement, cease to be recognised as such Ruler or the successor of such Ruler;

States to cease and privy purses to be abolished.

(b) on and from the commencement of the Constitution (Twenty-sixth Amendment) Act, 1971, privy purse is abolished and all rights, liabilities and obligations in respect of privy purse are extinguished and accordingly the Ruler or, as the case may be, the successor of such Ruler, referred to in clause (a), or any other person shall not be paid any sum as privy purse."

Amend-
ment of
article
366.

4. In article 366 of the Constitution, for clause (22), the following clause shall be substituted, namely:—

“(22) “Ruler” means the Prince, Chief or other person who, at any time before the commencement of the Constitution (Twenty-sixth Amendment) Act, 1971, was recognised by the President as the Ruler of an Indian State or any person who, at any time before such commencement, was recognised by the President as the successor of such Ruler;”.

STATEMENT OF OBJECTS AND REASONS

The concept of rulership, with privy purses and special privileges unrelated to any current functions and social purposes, is incompatible with an egalitarian social order. Government have, therefore, decided to terminate the privy purses and privileges of the Rulers of former Indian States. It is necessary for the purpose, apart from amending the relevant provisions of the Constitution, to insert a new article therein so as to terminate expressly the recognition already granted to such Rulers and to abolish privy purses and extinguish all rights, liabilities and obligations in respect of privy purses. Hence this Bill.

NEW DELHI;
The 31st July, 1971.

INDIRA GANDHI,